

Calendar Line 1

Case Name: Freeland v. Momentum for Mental Health (Class Action)
Case No.: 21CV376550

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on August 6, 2025, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. Introduction

This is a putative class and representative action arising from alleged violations of wage and hour laws. On February 26, 2021, plaintiff Sinora Freeland began this action by filing a Class Action Complaint against defendant Momentum for Mental Health (“Defendant”), asserting causes of action for: (1) unpaid overtime; (2) unpaid meal period premiums; (3) unpaid rest period premiums; (4) unpaid minimum wages; (5) final wages not timely paid; (6) wages not timely paid during employment; (7) non-compliant wage statements; (8) failure to keep requisite payroll records; (9) unreimbursed medical expenses; (10) violation of Business and Professions Code section 17200, *et seq.*

On June 16, 2021, Plaintiff filed a separate action against Defendant in this court (Case No. 21CV384331), asserting a sole cause of action for penalties pursuant to the Private Attorneys General Act (“PAGA”).

The parties have reached a settlement, and Plaintiff now moves for preliminary approval of the settlement. The motion is unopposed.

II. Legal Standard for Settlement Agreements

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235 (*Wershba*),